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CASE #	CASE NAME	HEARING NAME
CVRI2405296	MCCONNELL VS THE BANK OF NEW YORK MELLON	MOTION TO STRIKE AND VACATE THE ORDER OF MAY 5, 2026 DENYING THE RECONSIDERATION OF THE ORDER OF THE JANUARY 29, 2026 SUSTAINING DEMURRER
CVRI2405296	MCCONNELL VS THE BANK OF NEW YORK MELLON	MOTION TO STRIKE AND VACATE THE ORDER OF MAY 5, 2026 IN FAVOR OF DEFENDANT NATIONWIDE POSTING & PUBLICATION'S DEMURRER
CVRI2405296	MCCONNELL VS THE BANK OF NEW YORK MELLON	PLAINTIFFS' REPLY AND MOTION TO COMPEL NONPARTY NON-DEFENDANT'S RESPONSE TO REQUEST FOR PRODUCTION, SET ONE
CVRI2405296	MCCONNELL VS THE BANK OF NEW YORK MELLON	MOTION TO VACATE THE ORDER SUSTAINING THE DEMURRER ON 3RD AMENDED COMPLAINT
CVRI2405296	MCCONNELL VS THE BANK OF NEW YORK MELLON	MOTION TO VACATE THE ORDER SUSTAINING THE MOTION TO STRIKE THE 3RD AMENDED COMPLAINT

Tentative Ruling: Plaintiff's Motion to Vacate Order on motion to strike second, third, fourth, fifth, and sixth causes of action alleged in the Third Amended Complaint is denied.

Plaintiff's Motion to Vacate Order on Demurrer to first cause of action alleged in the Third Amended Complaint is denied.

Now before the Court is Plaintiffs' motion to vacate the Court's May 05, 2026, order striking second, third, fourth, fifth, and sixth causes of action from Plaintiffs' TAC and motion to vacate the Court's May 05, 2026, order sustaining the demurrer to the first cause of action alleged in the TAC. Plaintiffs assert that the Court was without jurisdiction to hear the motion to strike and the demurrer filed by a non-party to this action because BONY is not a named defendant in this case. On that basis, Plaintiffs request that the Court vacate its orders pursuant to Code of Civil Procedure section 473, subdivision (d), and reinstate their TAC. The motions must be denied.

What Plaintiffs have labeled as motions to vacate are treated as motions for reconsideration as they are seeking the Court to reconsider its rulings and to revoke them. Courts have disregarded the labeling of the motion, treating the substance of the motion as what mattered and not its label. (See *A.N. v. County of Los Angeles* (2009) 171 Cal.App.4th 1058, 1064.)

On May 06, 2026, the Court granted BONY's motion to strike the second, third, fourth, fifth, and sixth causes of action of the TAC. On that same date, the Court sustained BONY's demurrer to the first cause of action of the TAC without leave to amend. Plaintiffs argue that the Court lacked jurisdiction to rule on BONY's demurrer or to strike the causes of action alleged in the TAC because BONY is a nonparty to the action which is not named in the TAC. They argue that BONY cannot insert itself in this lawsuit because Plaintiffs has only named the securitized trust as a defendant in this case, i.e., Holders of the CIT Mortgage Loan Trust, 2007-1 Asset-Backed Certificates, Series 2007-1. They assert that only the party to the action may challenge the legal sufficiency of the pleading and therefore the rulings on the motion to strike and demurrer were improper and must be vacated. These arguments fail.

First, Plaintiffs have not shown they are entitled to relief under Code of Civil Procedure section 437, subdivision (d) on the ground that this Court lacks personal and subject matter jurisdiction. Section 437(d) provides that "[t]he court may ... on motion of either party after notice to the other

party set aside any void judgment or order.” (Code Civ. Proc., § 473(d).) Here, in support of their jurisdictional attack, Plaintiffs have not presented any competent evidence of BONY’s lack of capacity as a proper party to appear on behalf of the securitized trust; but only assertions. Furthermore, in order to undo rulings on prior matters, Plaintiffs seeking reconsideration must meet the requirements of Code of Civil Procedure section 1008.

Here, Plaintiffs have failed to meet the standards of Code of Civil Procedure section 1008 by failing to identify in their motions any new or different facts, circumstances, or law, that would justify the Court’s reconsideration of its May 06, 2026 rulings granting the motion to strike and sustaining the demurrer. Nor does Plaintiff James Lee McConnell explain in his declarations in support of the motions why any supposed new information could not have been produced with reasonable due diligence at the hearing on these matters.

Code of Civil Procedure section 1008, subdivision (a) provides in relevant parts:

When an application for an order has been made to a judge, or to a court, and...granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.

“A motion for reconsideration must be ‘based upon new or different facts, circumstances, or law.’” (*People v. Safety National Casualty Corp.* (2010) 186 Cal.App.4th 959, 974.) “To merit reconsideration, a party must also provide a satisfactory reason why it was unable to present its ‘new’ evidence at the original hearing.” (*Ibid.*)

Rather than explaining how any newly discovered information justifies the Court’s reconsideration of the rulings on BONY’s motion to strike and demurrer, they merely reiterate the arguments advanced in the oppositions by challenging the Court’s jurisdiction to hear matters filed by a non-party because BONY is not a named defendant in the lawsuit. The motions are insufficient to meet the procedural requirements of section 1008 and are denied for this reason.

Otherwise, as to all other Motions now before the court, they are denied as set forth below.

Plaintiffs argue that the Court lacked jurisdiction to rule on BONY’s demurrer or to strike the causes of action alleged in their pleadings because BONY is a nonparty to the action which is not named in this action. They argue that BONY cannot insert itself in this lawsuit because Plaintiffs have only named the holders of the securitized trust as a defendant in this case, i.e., Holders of the CIT Mortgage Loan Trust, 2007-1 Asset-Backed Certificates, Series 2007-1. They assert that only the party to the action may challenge the legal sufficiency of the pleading and therefore the rulings on the motion to strike and demurrer were improper and must be vacated. They also seek to compel the holders of the securitized trust to respond to their written discovery requests instead of BONY. Plaintiffs’ arguments are without merit. Nevertheless, the Court need not decide on the motions on the merits as the motions are not properly before the Court.

The Court is without jurisdiction to rule on the motion. On May 28, 2026, as to Defendant BONY (The Bank of New York, not in its individual capacity but solely as trustee on behalf of the Holders of the CIT Mortgage Loan Trust, 2007-1 Asset-Backed Certificates, Series 2007-1 erroneously sued as Holders of the CIT Mortgage Loan Trust 2007-1 Asset-Backed Certificates, Series 2007-1), this Court entered judgment of dismissal after sustaining Defendant’s demurrer and granting the motion to strike as to the TAC, leaving no claims operative against Defendant.

The Court's entry of judgment dismissing the action after sustaining the demurrer and granting motion to strike, without leave to amend, divested the Court's jurisdiction to rule on the motion. (*Safeco Ins. Co. of Illinois v. Architectural Facades Unlimited, Inc.* (2005) 134 Cal.App.4th 1477, 1482 ["It is well settled that entry of judgment divests the trial court of authority to rule on a motion for reconsideration"]; *California Dental Association v. California Dental Hygienists' Association* (1990) 222 Cal.App.3d 49, 59 ["an order of dismissal following sustaining of a demurrer without leave to amend ... is a judgment...."].) "When such an order is regularly made the trial court has no power to correct it or set it aside" and "reviewable only on appeal." (*Harris v. Board of Ed. Of City and County of San Francisco* (1957) 152 Cal.App.2d 677, 680; *Daar v. Yellow Cab Co.* (1967) Cal.2d 695, 699.)

Although a judgment entered where the trial court lacked jurisdiction is void and may be vacated by the Court at any time (Code Civ. Proc., § 473(d)), Plaintiffs present no evidence to show that the Court's judgment of dismissal was not regularly made and must be vacated on such ground. Code of Civil Procedure section 437, subdivision (d) provides that "[t]he court may ... on motion of either party after notice to the other party set aside any void judgment or order." (Code Civ. Proc., § 473(d).) Here, in support of their jurisdictional attack, Plaintiffs have not presented any competent evidence of BONY's lack of capacity as a proper party to appear on behalf of the holder's of the securitized trust; they only present assertions. Here, the TAC improperly named the holders of the securitized trust where "a trust is simply a collection of assets held for the benefit of designated beneficiaries" and therefore has no ability to sue or be sued, or otherwise act independently from a trustee. (*Dupree v. CIT Bank* (2023) 92 Cal.App.5th 142, 157.) "In order for a civil action to be prosecuted, there must be some existing entity aimed at by the processes of the law, and against whom the court's judgment will operate." (*Tanner v. Estate of Best* (1940) 40 Cal.App.2d 442, 445.) Despite the defect in naming the party, BONY voluntarily appeared in its proper name to defend the action on behalf of erroneously named Defendant. " 'A party may appear though he is not named in the complaint' " and submit to the jurisdiction of the Court. (*Fireman's Fund Ins. Co. v. Sparks Construction, Inc.* (2004) 114 Cal.App.4th 1135, 1146.)

2.

CASE #	CASE NAME	HEARING NAME
CVRI2507032	LEE VS BUCKNER HEAVYLIFT CRANES	MOTION TO SET ASIDE DEFAULT ON COMPLAINT FOR OTHER PERSONAL INJURY/PROPERTY DAMAGE/WRONGFUL DEATH TORT OF ROBERT ROY LEE BY BUCKNER HEAVYLIFT CRANES

Tentative Ruling: Defendant's UNOPPOSED Motion to Set Aside Entry of Default and Default Judgment is granted.

Order to Show Cause is set for 9/23/26, as to why sanctions not to exceed \$1,500.00 or dismissal should not be imposed for Failure to file request for entry of default of ALL defendants on complaint pursuant to CRC 3.110(g) as to PLAINTIFF AND ANTHONY MODARELLI.

FACTUAL TIMELINE

Based on the evidence presented in the declarations of Stephan Choo and Paul P. Burghardt, the following timeline is established:

- December 15, 2025: Plaintiff Robert Roy Lee filed the Complaint alleging negligence and negligent hiring, supervision, and retention.
- January 22, 2026: Plaintiff purportedly served the Summons and Complaint on Defendant via personal service.
- April 8, 2026: Plaintiff filed a Proof of Service for a Statement of Damages. Defendant asserts this was its first actual notice of the lawsuit.
- April 29, 2026: Plaintiff filed a Request for Entry of Default.